

# United States District Court for the District of South Carolina

## **Piedmont Booksellers Guild v. City of Norvale**

Case No. SYN-DSC-26-CV-0107 Order Denying City of Norvale's Motion for Stay Pending  
Appeal Entered January 28, 2026

The City moves to stay the preliminary injunction entered January 23 pending an anticipated interlocutory appeal. The Guild opposes, and the City has replied. Because the February 14 fair is approaching and the factual record is complete for this purpose, the Court decides the motion without another hearing. The motion is denied.

A stay pending appeal is extraordinary relief. The Court considers whether the City has made a strong showing of likely success, whether it will be irreparably injured without a stay, whether a stay will substantially injure the Guild, and where the public interest lies. The factors operate together, but a possibility of appellate disagreement does not alone suspend an injunction entered after adversarial proceedings.

The Court respects the City's choice to seek relief here first. That request gives this Court an opportunity to address administration and permits any later appellate motion to identify the ruling below. The Court does not infer from the filing that the City will disregard the injunction. Both parties have proposed measures for safe operation of the February event, and their cooperation narrows the immediate dispute.

The City has raised serious appellate questions but has not shown a strong likelihood that the injunction's central protection will be reversed. The January 23 opinion treated the ordinance as content neutral for purposes of the preliminary analysis. The likely defect lies in fit: paid status triggers a forty-five-day identity-and-topic submission and an escalating fee even though the City's operational interests turn principally on timing, format, attendance, location, and site conditions.

The City emphasizes that compensation identifies an organized presentation rather than an incidental conversation. That is an administrable distinction, but the record shows that the form already asks directly about schedule, expected audience, equipment, and layout. Compensation does not itself predict an added officer, medical unit, barrier, or sanitation service. The pilot materials do not isolate incremental processing cost per paid speaker. On this record, the Guild remains likely to show that the trigger and fee burden more protected programming than the legitimate planning interests require.

The ordinance's amendment uncertainty reinforces that conclusion. Staff may consider a late substitution but no enacted provision specifies a decision time or distinguishes a program change from a speaker-only change. The City's proposed three-business-day condition is constructive, yet it is a litigation proposal rather than the present ordinance. A reviewing court may weigh the record differently, but the likelihood asserted is not strong enough to displace interim protection.

The City has not established irreparable injury from continued compliance. It may require neutral site plans, attendance estimates, emergency contacts, loading windows, presentation times, formats, equipment information, and updates that bear on documented operational risks. It may preserve the service lane, enforce capacity, coordinate transit access, address competing reservations, and respond to material changes. The injunction does not require the City to ignore an imminent hazard.

The claimed loss of planning time depends on reading the injunction more broadly than its memorandum and context permit. Nothing bars staff from asking whether a substituted program changes expected audience, place, time, or format. The City may give written reasons tied to those facts. It may not condition the Guild's programs merely on the challenged paid-speaker charge or a rigid final name-and-topic list forty-five days before each fair.

The City also has not shown unrecoverable fiscal harm. Its records do not tie the \$45 assessment to an identified service delivered for each presenter, and it offers a partial stay that would suspend the assessment. Administrative adjustment during litigation imposes work, but the City has not quantified a disruption sufficient to outweigh the protected activity. If concrete implementation produces an unforeseen material problem, the City may request targeted modification on a developed record.

A stay would substantially injure the Guild. Its February program must be assembled before appellate review can be completed on an ordinary schedule. Invitations, travel, honoraria, advertising, and vendor commitments are time sensitive. A missed appearance cannot be restored by a later ruling, and repeated fees can affect whether small booksellers participate in the series. These are the same irreparable features supporting preliminary relief.

The City proposes expedition and a prompt review promise. Those measures reduce but do not eliminate the risk. The promise begins after a “final submission,” while the Guild's evidence shows that the roster may not become final forty-five days ahead. A stay would restore the challenged condition during the period when it shapes invitations. The Guild, by contrast, has committed to supply changing operational information and obey documented safety measures.

The public interest does not demand suspension. Safe access to Cedar Commons remains protected, as do free literary programs and viewpoint-neutral administration. The record reflects no violence, two minor medical responses, and routine congestion that the parties agree should be managed. Keeping the injunction in effect allows the City to address those real conditions without using compensation and early topic disclosure as proxies. The public benefits from that tailored interim arrangement.

The City separately argues that the January 23 order should be stayed because its operative terms and security treatment are vulnerable under Federal Rule of Civil Procedure 65. Those issues may warrant appellate clarification or a corrected order after review. They do not establish that the Guild should lose all protection in the interim. The memorandum and operative paragraph, read together, identify the ordinance, the covered Guild fairs, and the neutral safety authority that remains available.

The Court did not set a security amount in the January 23 order. The present record does not show a quantifiable compensable loss from suspending the speaker-specific fee and disclosure requirements, and the City has not proposed a bond figure. The Court does not modify or supplement the January 23 order through this stay ruling. Whether the original security treatment and specificity satisfy Rule 65 is preserved for review.

The motion to stay is therefore denied. The January 23 preliminary injunction remains effective according to its terms. The parties shall continue conferring over date-specific logistics and shall preserve written requests, responses, and reasons. This ruling does not prevent the City from seeking a stay from the court of appeals, nor does it prejudice any later request based on materially changed facts.

So ordered January 28, 2026. The Clerk shall enter this order and provide immediate electronic notice to all counsel. The underlying merits remain pending; no final judgment is entered, and this Court retains jurisdiction over proceedings not inconsistent with any interlocutory appellate review.